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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

PLAINTIFF'S DEMAND FOR JUDICIAL SUMMARY OF FACTS

RELIEF REQUESTED

Plaintiff respectfully demands that the Court, based on the records and documents already before this Court (or properly subject to judicial notice), enter a judicial summary establishing the following facts as having been established for all purposes in this proceeding. Each fact below is drawn from official records, court transcripts, or documents whose existence and authenticity are not reasonably subject to dispute. Plaintiff requests the Court to decide and declare that these facts are established.

FACTS DEMANDED FOR JUDICIAL SUMMARY

FACT 1: DATE OF COLLISION

The collision between Plaintiff Franciscus Dylan Rosario and Defendant Subhi Abdelhalim occurred on February 4, 2021.

Support: Complaint, CGC-21-594102; police incident report; CSAA denial letter dated February 25, 2021.

FACT 2: CSAA DENIAL LETTER

Defendant CSAA Insurance Exchange issued a denial letter dated February 25, 2021, twenty-one (21) days after the collision.

Support: CSAA denial letter dated February 25, 2021.

FACT 3: "CONCLUDED INVESTIGATION" REPRESENTATION

The denial letter stated, in substance, that CSAA had "concluded" its investigation and "concluded" that its insured was not liable.

Support: CSAA denial letter dated February 25, 2021.

FACT 4: OBTAINABILITY OF 911 RECORDING

Plaintiff's then-counsel, Dolan Law Firm, obtained the 911 audio recording on May 12, 2021, less than three months after the collision.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, pretrial hearing, CGC-21-594102.

FACT 5: CONTENT OF THE 911 RECORDING

The 911 audio recording contains a statement by Defendant Subhi Abdelhalim regarding the collision. Abdelhalim authenticated the recording at trial on April 17, 2025, stating: "Yes. That is my voice."

Support: Reporter's Transcript, April 17, 2025, RT Day 8, Line 1979, CGC-21-594102.

FACT 6: CSAA FUNDED THE DEFENSE

CSAA Insurance Exchange funded the defense of *Rosario v. Abdelhalim*, CGC-21-594102, through retained defense counsel.

Support: CSAA's status as Abdelhalim's liability insurer; retention of Chambers, subsequently Carbone Smith & Koyama, and subsequently Phillips, Spallas & Angstadt LLP as defense counsel.

FACT 7: ABDELHALIM'S ADMISSION ON THE 911 RECORDING

The 911 audio recording contains Abdelhalim's statements verbatim as described in the official transcript, including: "He cross from me, and he's barely hitting anything, but I'm calling for him" and "BOOM! I just hit him. HIT HIM. There was barely anything. I'm calling the 911 for him." Abdelhalim authenticated the recording at trial on April 17, 2025, stating verbatim: "Yes. That is my voice."

Support: Reporter's Transcript, April 17, 2025, RT Day 8, CGC-21-594102; 911 audio exhibit.

FACT 8: LAWSUIT FILED AFTER DENIAL LETTER

The underlying lawsuit, *Rosario v. Abdelhalim*, CGC-21-594102, was filed on July 27, 2021, approximately five months after the February 25, 2021 denial letter.

Support: Complaint filing date, CGC-21-594102; CSAA denial letter dated February 25, 2021.

FACT 9: PRODUCTION OF EVIDENCE TO DEFENSE IN DISCOVERY

The 911 audio, body-worn camera footage (approximately five videos), and CAD log were produced to defense counsel in discovery and used at Plaintiff's deposition on August 18, 2022, and at Defendant Abdelhalim's deposition on September 30, 2022.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, pp. 139–141, CGC-21-594102.

FACT 10: COURT'S ON-RECORD STATEMENT OF MAY 12, 2021 DATE

The Court stated on the record that the 911 exhibit was turned over to the Dolan Law Firm on May 12, 2021.

Support: Reporter's Transcript, January 27, 2025, p. 31, ll. 22–24, CGC-21-594102 ("it appears that the date of the exhibit was turned over to the Dolan Law Firm was on May 12, 2021. So, it's been in the possession of the Dolan Law Firm since May 12, 2021.").

FACT 11: VERDICT MARGIN

The jury in *Rosario v. Abdelhalim*, CGC-21-594102, returned a 9–3 verdict for the defense, the minimum civil majority under California law.

Support: Special Verdict Form; Notice of Entry of Judgment, CGC-21-594102.

FACT 12: LAW ENFORCEMENT RESPONDED TO THE COLLISION

The San Francisco Police Department responded to the February 4, 2021 collision. Officers were dispatched, a 911 call was recorded, body-worn camera footage was generated, and computer-aided dispatch (CAD) logs were created in the ordinary course of the police response.

Support: Police incident report; 911 audio exhibit; CAD log; Complaint, CGC-21-594102.

FACT 13: DEFENSE COUNSEL SUBPOENAED SFPD FOR THE SAME RECORDS

Prior defense counsel issued a subpoena to the San Francisco Police Department requesting the same 911 audio, body-worn camera footage, and related data that CSAA had not obtained before issuing its denial letter. J. Jessup testified that he had a copy of this defense subpoena.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, p. 140, ll. 9–15, CGC-21-594102 ("I have a copy of the Compaq subpoena issued by defense to San Francisco Police Department requesting all of this data.").

FACT 14: DENIAL LETTER WAS A PRE-LITIGATION BUSINESS COMMUNICATION

No lawsuit, demand, or formal claim proceeding existed at the time CSAA issued the February 25, 2021 denial letter. The letter was a pre-litigation business communication issued in the ordinary course of CSAA's claims-handling operations.

Support: CSAA denial letter dated February 25, 2021; Complaint filing date July 27, 2021, CGC-21-594102.

FACT 15: FOUR YEARS OF LITIGATION

Plaintiff litigated *Rosario v. Abdelhalim*, CGC-21-594102, for approximately four years, from filing on July 27, 2021 through judgment on April 25, 2025.

Support: Complaint filing date; Notice of Entry of Judgment, CGC-21-594102.

FACT 16: JUDGMENT

Judgment was entered in favor of defendant on April 25, 2025.

Support: Notice of Entry of Judgment, CGC-21-594102.

FACT 17: MOTION IN LIMINE NO. 17 CLAIMS

Defense motion in limine No. 17, filed January 17, 2025, asserted that the 911 recording was "not produced during discovery," introduced at the "eleventh hour," and had "unknown provenance," despite the recording having been produced to defense in discovery and used at depositions in 2022.

Support: Motion in Limine No. 17, filed January 17, 2025, CGC-21-594102; Reporter's Transcript, February 18, 2025, pp. 139–141, CGC-21-594102.

FACT 18: ALBERTO REYNA'S DOCUMENT REQUEST

Alberto Reyna, of Phillips, Spallas & Angstadt LLP, served a request for "all documents, records stored in any format" relating to the collision in February 2024.

Support: Document production requests; Substitution of Attorney records, CGC-21-594102.

FACT 19: CAD NUMBERS PROVIDED TO REYNA

CAD log numbers were provided to Alberto Reyna on September 9, 2024.

Support: Correspondence and discovery responses, CGC-21-594102.

FACT 20: SUBSTITUTION OF ATTORNEY AND PSA TENURE

A Substitution of Attorney was filed on May 4, 2023 (Transaction ID #69953800), reflecting that Phillips, Spallas & Angstadt LLP had held the defense file for approximately 20 months before trial.

Support: Clerk's Transcript, Substitution of Attorney, Transaction ID #69953800, May 4, 2023, CGC-21-594102.

FACT 21: "NEWS TO ME" STATEMENT

At the February 18, 2025 pretrial hearing, defense counsel Priya Navaratnasingham stated on the record that the 911 recording was "news to me," despite the recording having been produced in discovery and used at depositions in 2022.

Support: Reporter's Transcript, February 18, 2025, p. 141, ll. 4–11, CGC-21-594102.

FACT 22: "NOT SURE WHAT RECORDING" STATEMENT

At trial on April 16, 2025, Alberto Reyna stated on the record that he was "not sure what recording" was being referenced, despite the 911 recording having been produced in discovery, used at depositions, and the subject of pretrial motions.

Support: Reporter's Transcript, April 16, 2025, ll. 2990–2994, CGC-21-594102.

FACT 23: JURY QUESTION REGARDING VEHICLE CODE STATUTES

During deliberations, the jury submitted a written question asking about Vehicle Code sections 22107 and 21804(a).

Support: Jury question; Reporter's Transcript, CGC-21-594102.

FACT 24: COURT'S RULING ON VEHICLE CODE EVIDENCE

The Court informed the jury that Vehicle Code sections 22107 and 21804(a) were "not part of the evidence" and that the jury was "not permitted to consider" them.

Support: Reporter's Transcript, court's response to jury question, CGC-21-594102.

FACT 25: IMPORTANCE OF SFPD RECORDS TO DEFENSE

The defense independently subpoenaed the San Francisco Police Department for the same 911 audio, body-worn camera footage, and related data that Plaintiff had obtained and produced in discovery, demonstrating that defense counsel regarded these materials as critical to the case.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, p. 140, ll. 9–15, CGC-21-594102; Fact 9 (production to defense in 2022).

FACT 26: NO PRE-DENIAL CONTACT WITH PLAINTIFF

CSAA did not contact Plaintiff to obtain his account of the collision before issuing the February 25, 2021 denial letter.

Support: Denial letter (no reference to Plaintiff's account); Complaint allegations, CGC-25-631802.

FACT 27: THREE-WEEK INVESTIGATION WINDOW

The period between the collision (February 4, 2021) and the denial letter (February 25, 2021) was 21 calendar days, of which only 15 were business days.

Support: Calendar computation from the two dates; Complaint, CGC-21-594102; CSAA denial letter dated February 25, 2021.

FACT 28: POST-DENIAL DURATION OF LITIGATION

CSAA funded the defense of *Rosario v. Abdelhalim* for approximately four years after representing its investigation was "concluded," from filing on July 27, 2021 through judgment on April 25, 2025.

Support: Complaint filing date, CGC-21-594102; Notice of Entry of Judgment; Fact 6 (CSAA funded the defense); Fact 2 (denial letter date).

BASIS FOR JUDICIAL SUMMARY

These twenty-eight facts are documentary. Defendant cannot deny the collision date, the letter date, the authentication testimony, the verdict margin, the defense subpoena to SFPD, the MIL No. 17 claims, the "news to me" and "not sure what recording" statements, or the jury question and court ruling on Vehicle Code statutes. The 21-day gap between collision and denial, the subsequent obtainability of the 911 recording by May 12, 2021, the production of materials in discovery,

Reyna's document request and receipt of CAD numbers, and PSA's 20-month tenure on the file are arithmetically and documentarily undeniable. Plaintiff requests the Court to decide that these facts are established for all purposes in this action.

Together, they establish that CSAA's representation of investigative finality was false when made: the investigation had not been "concluded" in any meaningful sense, because CSAA had not obtained or reviewed the foundational objective evidence of the collision. The 911 recording containing Abdelhalim's own admission ("I barely hit him with anything") was available through routine public records requests, was obtained by Plaintiff's counsel within three months, was produced to the defense in 2022, and was sufficiently important that defense counsel independently subpoenaed SFPD for the same records. Defense counsel's pretrial assertions that the recording was "news to me" and "not sure what recording" conflict with the record of production and depositions. MIL No. 17's claims of non-production and "eleventh hour" introduction are contradicted by the documentary timeline. CSAA's categorical denial 21 days after the collision, without obtaining this evidence, followed by four years of CSAA-funded litigation, demonstrates that the "concluded investigation" representation was either knowingly false or made with reckless disregard for its truth.

Dated: March 2, 2026

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